

T.D. 2013

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

Date Purchased:

-----X
JOSE GONZALEZ and ARNALDO LAURIANO,

Plaintiffs,

-against-

CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, Det. RICARDO BOCACHICA, Det.
LESLIE GAUVIN and OFFICER[S] JOHN AND JAMES
DOE, names being fictitious and meant to designate
additional offending officers,

Defendants.
-----X**SUMMONS**

Plaintiff designates
BRONX County as the
place of trial

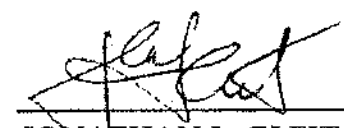
The basis of venue is:
CPLR 504 (3)

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and
serve a copy of your answer, or, if the complaint is not served with this summons, to
serve a notice of appearance on the Plaintiff's attorneys within twenty days after the
service of this summons, exclusive of the day of service, where service is made by
delivery upon you personally within the state, or within 30 days after completion of
service where service is made in any other manner. In case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the
complaint to be assessed by the Court.

Dated: Bronx, N.Y.

January 26, 2012


By: JONATHAN L. GLEIT, ESQ.
Attorney for Plaintiffs

888 Grand Concourse

Suite 1-Q

Bronx, NY 10458

(718) 742-0200

To:

CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, 4th Floor, Law Dept.
New York, New York 10007

Det. RICARDO BOCACHICA, Shield 00919, Det. LESLIE GAUVIN, both of NAB 00BX
1 Police Plaza, New York, NY 10038

RECORDED & INDEXED
JAN 27 2012
CLERK OF THE COURT
COUNTY OF BRONX

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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JOSE GONZALEZ and ARNALDO LAURIANO,

Index No.:

Plaintiffs,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, Det. RICARDO BOCACHICA, Det.
LESLIE GAUVIN, and OFFICER[S] JOHN AND JAMES
DOE, names being fictitious and meant to designate
additional offending officers,

Defendants.
-----X

Plaintiffs, by their attorney, **Jonathan L. Gleit, Esq.**, complaining of the

Defendants, respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFFS JOSE GONZALEZ and ARNALDO LAURIANO

1. At the time of the commencement of this action, Plaintiffs JOSE GONZALEZ and ARNALDO LAURIANO were and still are residents of the County of Bronx, City and State of New York.
2. That the causes of action alleged herein arose in the County of Bronx, City and State of New York.

3. That at all times herein mentioned Defendant CITY OF NEW YORK was, and still is, a Municipal Corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the State of New York.

4. That the CITY OF NEW YORK maintains a Police Department.

5. That on and about November 2, 2010, Det. RICARDO BOCACHICA was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

6. That on and about November 2, 2010, at approximately 3:30 P.M., Det. RICARDO BOCACHICA was working and acting within the scope of his employment as a Police Officer, and under the color of law.

7. That on and about November 2, 2010, Det. LESLIE GAUVIN was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

8. That on and about November 2, 2010, at approximately 3:30 P.M., Det. LESLIE GAUVIN was working and acting within the scope of his employment as a Police Officer, and under the color of law.

9. That on and about November 2, 2010, OFFICER[S] JOHN AND/OR JAMES DOE were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

10. That on and about November 2, 2010 at approximately 3:30 P.M., OFFICER[S] JOHN AND/OR JAMES DOE were working and acting within the scope of their employment as a Police Officer[s], and under the color of law.

11. That on or about November 2, 2010 at approximately 3:30 P.M., at or near the southeast corner of Valentine Avenue and East 198th Street, Bronx, New York, the Plaintiffs JOSE GONZALEZ and ARNALDO LAURIANO were improperly arrested, and confined without proper authority or justification, having no reason in law or in fact to arrest or confine JOSE GONZALEZ and ARNALDO LAURIANO.

12. That the defendants, their agents, servants and/or employees arrested and confined the Plaintiffs without any basis in law or fact and without reasonable, probable or just cause or justification.

13. That the defendants, their agents, servants and/or employees arrested the Plaintiffs without any basis in law or fact, by making false accusations against them, when they knew, or in the exercise of reasonable care, should have known they were false.

14. That the defendants Det. RICARDO BOCACHICA, Det. LESLIE GAUVIN and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false

information to the prosecutor of the criminal actions against Plaintiffs thereby causing them to suffer an unlawful seizure of person and property.

15. That defendants, their agents, servants and/or employees continued to prosecute Plaintiffs and deny their freedom after they knew, or should have known, they were innocent of all charges being alleged against them.

16. That all criminal charges brought against Plaintiffs, which were brought under docket numbers 2010BX069040 and 2010BX069041, respectively in the Bronx Supreme Court, Criminal Division, regarding the incidents of November 2, 2010, were dismissed by Hon. Ethan Greenberg, an Acting Justice of the Supreme Court, on January 5, 2011,

17. That by reason of the aforementioned, the Defendants actions amounted to malicious prosecution of JOSE GONZALEZ and ARNALDO LAURIANO.

18. As a result of the malicious prosecution, Plaintiffs were deprived of liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecutions, and were otherwise damaged and injured and forced to defend their liberty for a period of approximately nine weeks.

19. That the defendants, their agents, servants and/or employees unlawfully arrested, detained, imprisoned and searched the Plaintiffs and took their property without any basis in law or fact, and with Plaintiffs being aware of their unlawful

confinement, thereby causing freight, shock, emotional distress and physical consequences.

20. That during the unlawful arrest of Plaintiffs, defendants employed and utilized unreasonable and invasive search methods and procedures upon the Plaintiffs such as strip searches without without an individualized articulable reasonable suspicion of the secreting of evidence inside a bodily cavity.

21. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of arresting innocent citizens, almost exclusively citizens of a racial minority, and engaging in a policy and procedure of arresting persons upon pretext and/or the fabrication of evidence, without any probable cause or reasonable basis to do so for nefarious, unlawful reasons such as the fulfillment of arrest quotas and the subjugate minority population without reprimand to the offending officers. That said illegal and unlawful arrests without reasonable or probable cause are a matter of public policy and record and openly acknowledged or known by the defendants, yet condoned without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein. Further, officers of the New York City Police Department, and especially and specifically officers

of the 52nd Precinct routinely engage in the use of practices such as illegal, unlawful and unnecessary strip searches and anal cavity searches without individualized reasonable suspicion of the secreting of evidence inside a bodily cavity in order to degrade, humiliate and subjugate persons, almost exclusively of a racial minority, without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein even though these occurrences are well known and almost routine, and evidenced by the multitude of actions brought in state and federal courts and complaints made to the Civilian Complaint Review Board and the Bureau of Internal Affairs. Further, officers of the New York City Police Department, and especially and specifically officers of the 48th Precinct routinely engage in the use of practices such as illegal, unlawful and unnecessary strip searches and anal cavity searches in order to degrade, humiliate and subjugate persons, almost exclusively of a racial minority, and testify falsely so often, omitting such acts or fabricating evidence under pretext, that such conduct is considered routine by the offending officers, without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those

complained of herein even though these occurrences are well known and evidenced by the multitude of actions brought in state and federal courts and complaints made to the Civilian Complaint Review Board and the Bureau of Internal Affairs and by specifically engaging in said conduct specifically with regard to Plaintiffs herein.

Furthermore patterns of wrongful strip searches conducted without a reasonable articulable suspicion that the searched person was secreting evidence within a bodily cavity has occurred to such individuals such as, for instance, on October 27, 2007 JOSE ALICIA was improperly strip searched by officers of the 52nd Precinct; on June 30, 2009, MARCO VASQUEZ was improperly strip searched by officers of the 52nd Precinct ;on January 14, 2010 SHAWN ADAMES was improperly strip searched by officers of the 52nd Precinct; on August 30, 2010 TRACY PIQUAN and LUIS POLANCO were improperly strip searched by officers of the 52nd Precinct; and is well evidenced by the May 14, 2004 letter by the Civilian Complaint Review Board with attachments to Police Commissioner Raymond Kelly, detailing the NYPD policy of illegal strip searched by their officers, a copy of which is available to the public at <http://www.nyc.gov/html/ccrb/pdf/stripsearchletter.pdf>, and as evidenced by the above and within individuals and countless others demonstrates that said practices continue unabated.

Furthermore, Det. RICARDO BOCACHICA has engaged in a pattern of wrongful arrests similar to the allegations made herein, as evidenced by the wrongful arrests of MILAGROS CRUZ on March 25, 2008 at 2707 Briggs Avenue, Bronx NY, and ALAN ROSENBAUM on September 10, 2010 at 1175 East 229th Street, Bronx, New York.

22. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of arresting innocent citizens, almost exclusively citizens of a racial minority upon the fabrication of evidence or pretext, and utilizing unreasonable invasive search procedures without individualized articulable reasonable suspicion of the secreting of evidence.

23. That no negligence or actions on the part of the Plaintiffs contributed to the occurrences alleged herein in any manner whatsoever.

24. The herein above described actions and omissions, engaged in under the color of law by the defendants, including the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq., by policy, procedure and act, deprived the Plaintiffs of rights secured by the Constitution and laws of the United States, including, but not limited to the First Amendment right of freedom of expression, the Fourth Amendment right to be free from unlawful seizures of his person, the Fifth Amendment rights of due process of law and to equal protection of the laws, including the right to be

free from unjustified confinement utilized by the police, the Eighth Amendment right to be free from cruel and unusual punishment, and under Title 42 U.S.C. 1983, et seq.

25. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

26. That as a result of the foregoing, the Plaintiffs JOSE GONZALEZ and ARNALDO LAURIANO were damaged in sums which exceed the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF

OF THE PLAINTIFFS JOSE GONZALEZ and ARNALDO LAURIANO

27. That Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs enumerated 1 through 26 as though more fully set forth herein.

28. That on or about January 26, 2011, and within 90 days after the claims herein sued upon, Plaintiffs caused Notices of Claim, sworn to by or on behalf of the claimants, to be served upon the defendant CITY OF NEW YORK, by delivering a copy thereof, in duplicate, to the offices of the defendant CITY OF NEW YORK, which said Notices of Claim set forth the name and post office address of the claimants and claimants' attorney, the nature of the claims, the time when, the place where, and the manner in which the claims arose and items of damage or injuries claimed to have been sustained, so far as then practicable. At least thirty (30) days have elapsed prior to the

commencement of this action since the service of such Notices of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant, and defendant conducted General Municipal Law §50h hearings of Plaintiffs on March 17, 2011, and this action was commenced on the claim within one year and ninety days after the happening of the event upon which the claim is based.

29. That this action is being commenced within one year and ninety days after accrual of these causes of action, or within the time allowed by law.

30. That on or about November 2, 2010 at approximately 3:30 P.M., at or near the southeast corner of Valentine Avenue and East 198th Street, Bronx, New York, the Plaintiffs JOSE GONZALEZ and ARNALDO LAURIANO were improperly arrested, and confined without proper authority or justification, having no reason in law or in fact to arrest or confine JOSE GONZALEZ and ARNALDO LAURIANO.

31. That at all times herein mentioned, Defendants, their agents, servants and / or employees, deprived the Plaintiffs of Due Process under Law.

32. That the defendants, their agents, servants and/or employees arrested and confined the Plaintiffs without any basis in law or fact and without reasonable, probable or just cause or justification.

33. That the defendants, their agents, servants and/or employees arrested the Plaintiffs without any basis in law or fact, by making false accusations against them, when they knew, or in the exercise of reasonable care, should have known they were false.

34. That the defendants, their agents, servants and/or employees unlawfully arrested, detained, imprisoned and searched the Plaintiffs and took their property without any basis in law or fact, and with Plaintiffs being aware of his unlawful confinement, thereby causing freight, shock, emotional distress and physical consequences.

35. That no negligence or actions on the part of the Plaintiffs contributed to the occurrences alleged herein in any manner whatsoever.

36. That these causes of action fall within one or more of the exceptions as set forth in CPLR Section 1602.

37. That as a result of the foregoing, the Plaintiffs JOSE GONZALEZ and ARNALDO LAURIANO were damaged in sums which exceed the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF

OF THE PLAINTIFFS JOSE GONZALEZ and ARNALDO LAURIANO

38. That Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs enumerated 1 through 37 as though more fully set forth herein.

39. That the defendants, their agents, servants and/or employees prosecuted criminal actions against the Plaintiffs without any basis in law or fact.

40. That the defendants, their agents, servants and/or employees continued to prosecute the criminal actions against the Plaintiffs due to racism and prejudice and for other nefarious means and without any basis in law or fact.

41. That the defendants Det. RICARDO BOCACHICA and Det. LESLIE GAUVIN and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the criminal actions against Plaintiffs thereby causing them to suffer an unlawful seizure of person and property.

42. That defendants, their agents, servants and/or employees continued to prosecute Plaintiffs and deny their freedom after they knew, or should have known, they were innocent of all charges being alleged against them.

43. That all criminal charges brought against Plaintiffs, which were brought under docket numbers 2010BX069040 and 2010BX069041, respectively in the Bronx Supreme Court, Criminal Division, regarding the incidents of November 2, 2010, were dismissed by Hon. Ethan Greenberg, an Acting Justice of the Supreme Court, on January 5, 2011.

44. That by reason of the aforementioned, the Defendants actions amounted to malicious prosecution.

45. As a result of the malicious prosecution, Plaintiffs were deprived of liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecutions, and were otherwise damaged and injured. The Plaintiffs made court appearances to defend their liberty against these unjust charges over a period of approximately nine weeks.

46. That these causes of action fall within one or more of the exceptions as set forth in CPLR Section 1602.

47. That as a result of the foregoing, the Plaintiffs JOSE GONZALEZ and ARNALDO LAURIANO were damaged in sums which exceed the jurisdiction of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF

THE PLAINTIFFS JOSE GONZALEZ and ARNALDO LAURIANO

48. That Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs enumerated 1 through 47 as though more fully set forth herein.

49. That on or about November 2, 2010 at approximately 3:30 P.M., at or near the southeast corner of Valentine Avenue and East 198th Street, Bronx, New York, and thereafter at the 52nd Precinct, the Plaintiffs JOSE GONZALEZ and ARNALDO

LAURIANO were subjected to improper, unnecessary, unjustified and intrusive bodily searches and were subject to anal cavity strip searches.

50. That the defendants, their agents, servants and/or employees employed and utilized unreasonable and invasive search methods and procedures upon the Plaintiffs such as strip searches without without and individualized articulable reasonable suspicion of the secreting of evidence inside a bodily cavity.

51. That no negligence or actions on the part of the Plaintiffs contributed to the occurrences alleged herein in any manner whatsoever.

52. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

53. That as a result of the foregoing, the Plaintiffs JOSE GONZALEZ and ARNALDO LAURIANO were damaged in sums which exceed the jurisdiction of all lower Courts.

AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF

THE PLAINTIFFS JOSE GONZALEZ and ARNALDO LAURIANO

54. That Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs enumerated 1 through 53 as though more fully set forth herein.

55 That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

56. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants in the proper arrests of individuals, and in the utilization of invasive search procedures utilized without reasonable individualized articulable suspicion of the secreting of evidence inside a bodily cavity.

57. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the defendant's negligence, Plaintiffs JOSE GONZALEZ and ARNALDO LAURIANO were denied freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the Plaintiffs were made, still is and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the Plaintiffs and for the purchase of drugs and medicines, and that Plaintiffs were and in

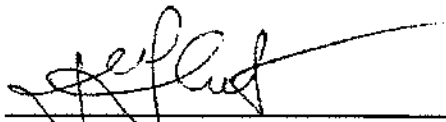
the future will be prevented from attending to Plaintiffs' usual vocation and avocations;
all to the Plaintiffs' damage in a sums which exceed the jurisdiction of all lower Courts.

58. That this cause of action falls within one or more of the exceptions as set forth in
CPLR Section 1602.

59. That as a result of the foregoing, the Plaintiffs JOSE GONZALEZ and ARNALDO
LAURIANO were damaged in sums which exceed the jurisdiction of all lower Courts.

WHEREFORE, Plaintiffs demands judgment against the Defendants on the First,
Second, Third, Fourth and Fifth Causes of Action inclusive of punitive damages, and
attorneys fees as permitted by statute, all in sums which exceed the jurisdiction of all
lower Courts, together with the costs and disbursements of this action.

Dated: Bronx, N.Y.
January 26, 2012


By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiffs
JOSE GONZALEZ
and ARNALDO LAURIANO

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-020

To:
CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street

4th Floor, Law Dept., New York, New York 10007

Det. RICARDO BOCACHICA, Shield 00919, Det. LESLIE GAUVIN, both of NARCBX
1 Police Plaza, New York, NY 10038

PLAINTIFF'S VERIFICATION

JOSE GONZALEZ affirms the following to be true under the penalties of perjury:

I am Plaintiff in the within action and have read the annexed

Complaint

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon personal knowledge, facts, records, and other pertinent information contained in my files.

DATED: BRONX, N.Y.


JOSE GONZALEZ

PLAINTIFF'S VERIFICATION

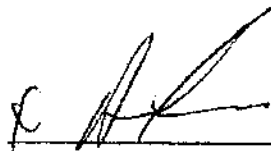
ARNALDO LAUREANO affirms the following to be true under the penalties of perjury:

I am Plaintiff in the within action and have read the annexed

Complaint

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon personal knowledge, facts, records, and other pertinent information contained in my files.

DATED: BRONX, N.Y.



ARNALDO LAUREANO

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Summons and Verified Complaint

JONATHAN L. GLEIT, ESQ.

Attorney for the Plaintiff

888 Grand Concourse
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